

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 2072

By: Hamilton of the Senate

and

Osburn of the House

6
7
8
9 An Act relating to conveyances; amending Section 1,
10 Chapter 109, O.S.L. 2025 (16 O.S. Supp. 2025, Section
11 311), which relates to notice of fraudulent
12 conveyance; updating statutory reference; prohibiting
13 charging of fee for certain filing; requiring certain
14 notice to certain law enforcement agencies; and
15 providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY Section 1, Chapter 109, O.S.L.
18 2025 (16 O.S. Supp. 2025, Section 311), is amended to read as
19 follows:

20 Section 311. A. A person who is the victim of title theft as
21 ~~defined set forth~~ in Section ~~2~~ 1534 of ~~this act~~ Title 21 of the
22 Oklahoma Statutes may file of record a notice of fraudulent
23 conveyance, duly verified by oath, setting forth the nature of the
24 fraudulent conveyance. Such notice may be filed of record by the
 victim or by any other person acting on behalf of the victim who is

1 under a disability or otherwise unable to assert the claim on his or
2 her own behalf. Such notice shall serve as constructive notice that
3 the conveyance is alleged to be fraudulent.

4 B. To be effective and entitled to be recorded, notice of a
5 fraudulent conveyance shall contain an accurate and full description
6 of the real property affected by the recorded fraudulent conveyance.
7 Such notice of fraudulent conveyance shall be filed for record in
8 the county clerk's office of the county or counties where the real
9 property is situated. Except as provided in subsection D of this
10 section, the county clerk shall accept any notice presented that
11 describes real property located in the county and shall enter,
12 record, and index such notice in the same manner that a deed is
13 recorded. A county clerk may charge fees for the recording of the
14 notice in accordance with the county clerk fee schedule set forth in
15 Section 32 of Title 28 of the Oklahoma Statutes. No fee shall be
16 charged by the county clerk or court clerk for the filing of an
17 order to quiet title to restore title to the rightful property owner
18 due to a fraudulent conveyance. The name or names of any victim
19 appearing in such notice shall be entered as a grantee or grantees
20 in such indexes.

21 C. Upon the filing of a notice of fraudulent conveyance, the
22 county clerk shall deliver a copy of the notice to the district
23 attorney and the local law enforcement agency in the jurisdiction
24

1 where the property is located for investigation and potential
2 prosecution.

3 D. The county clerk may refuse to file a notice of fraudulent
4 conveyance provided for in subsection B of this section if the clerk
5 has a reasonable belief that the notice constitutes sham legal
6 process as defined in subsection H of Section 1533 of Title 21 of
7 the Oklahoma Statutes, or if the clerk has a reasonable belief that
8 the notice is being presented as a slander of title to the real
9 property. If the county clerk refuses to file a notice of
10 fraudulent conveyance, the aggrieved party may petition the district
11 court for a writ of mandamus to compel the county clerk to record
12 the notice pursuant to the provisions of Section 75 of Title 16 of
13 the Oklahoma Statutes.

14 SECTION 2. This act shall become effective November 1, 2026.
15

16 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
17 OVERSIGHT, dated 04/16/2026 - DO PASS.
18
19
20
21
22
23
24